

易”，而是表示“意义重大的事，非常重要的事”。[C]中 has been dismissed 表明判决结果，与第四段②句中 would be heard(即将听审，尚未作出判决)相矛盾。

[技巧总结] Which of the following is true of... 为细节推理题的典型提问方式，此类题的解答步骤有：一、根据考查对象迅速定位；二、分析选项内容及措辞：含有 may 或表示可能性的副词，同时内容涉及“较大的影响力”(不具备较大意义或影响力的内容不会成为命题人着眼的对象)，很可能为正确项，确认该项与主题是否契合。

解答本题时，首先根据 the Bilski case 迅速定位至第二段③④句；然后通过选项措辞及内容，判断[D]可能正确；再根据文章主题：the bilski case 为文中例子，旨在说明文章主题，而文章主题为第二段①句：(十年来授予无数商业方法专利，)现在美国专利法庭意欲缩减商业方法专利数量(对其采取限制措施)，今昔变化凸显美国专利相关法律实践或遭改变，最终确定选项。

III ① **Curbs**^① on business-method **claims**^② would be a **dramatic**^③ **about-face**^④, because **it** was the Federal Circuit itself that introduced such patents with its 1998 decision in the so-called State Street Bank case, approving a patent on a way of **pooling**^⑤ mutual-fund assets. ② That **ruling**^⑥ produced an **explosion**^⑦ in business-method patent **filings**^⑧, initially by emerging Internet companies trying to stake out exclusive rights to specific types of online transactions. ③ Later, more **established**^⑨ companies raced to add such patents to their files, if only as a defensive move against rivals that might beat them to the punch. ④ In 2005, IBM noted in a court filing that it had been **issued**^⑩ more than 300 business-method patents, despite the fact that it questioned the legal basis for granting them. ⑤ Similarly, some Wall Street investment firms armed themselves with patents for financial products, even as they took positions in court cases opposing the **practice**^⑪.

对商业方法专利申请的限制也许是一次戏剧性的 180 度逆转，因为正是联邦巡回法院自己在 1998 年被称为“道富银行案”的裁决中引入了此类专利，批准了一项共同基金资产筹集方法的专利。那项裁决导致了商业方法专利申请卷宗的激增，起初是新兴网络公司试图对特定类型的在线交易占得专有权。后来，更多的老牌公司竞相将此类专利归入其卷宗，哪怕只是作为一项防御性措施以防范可能先发制人的竞争对手。2005 年，IBM 在一份法院案卷中注意到自己被授予了 300 多项商业方法专利，尽管它质疑授予这些专利的法律依据。无独有偶，一些华尔街投资公司也都以金融产品专利来武装自己，即使它们在法庭案例中表示反对这一做法。

· 词汇注释与难句分析 ·



- ① **curb** [kɜ:b] *n.* 起约束或控制作用的事物
- ② **claim** [kleim] *n.* 专利申请
- ③ **dramatic** [drə'mætɪk] *a.* 戏剧性的
- ④ **about-face** *n.* 政策或意见的 180 度转变
- ⑤ **pool** [pu:l] *v.* 集中(金钱、资源等)
- ⑥ **ruling** ['ru:lɪŋ] *n.* 裁决, 裁定, 判决
- ⑦ **explosion** [ɪk'spləʊʒən] *n.* 激增
- ⑧ **filing** ['faɪlɪŋ] *n.* 卷宗
- ⑨ **established** [ɪ'stæblɪʃt] *a.* 地位稳固的
- ⑩ **issue** ['ɪʃu:] *v.* (正式) 发给, 供给

- ⑪ **practice** ['præktɪs] *n.* 通常的做法, 惯例, 常规

● 经典搭配

- ① stake out exclusive rights to sth (宣布对……的独占权)
- ② established companies (老牌公司)
- ③ race to do sth (争相……)
- ④ defensive move against (针对……的防卫措施)
- ⑤ beat sb to the punch (先下手为强)

Curbs on business-method claims would be a dramatic about-face, because it was the Federal Circuit itself that introduced such patents with its 1998 decision in the so-called State Street Bank case, approving a patent on a way of pooling mutual-fund assets.